

24STCV18329 24STCV18329

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 24STCV18329 Hearing Date: June 23, 2026 Dept: 529

IMAD AKIKI VS COSIC SECURITY SERVICES, INC., ET AL

MOTION

TO SET ASIDE DEFAULT JUDGMENT

Date of Hearing: June 23,

2026 Trial

Date: N/A

Department: 529 Case

No.: 24STCV18329

Moving

Party: Defendants Drazen Cosic

and Cosic Security Services, Inc.

Responding Party: No

opposition.

BACKGROUND

On July 24, 2024, Plaintiff Imad Akiki filed a complaint against Defendant Cosic Security Services, Inc., Drazen Cosic, and Albert Cosic for various violations of the Labor Code and Government Code along with wrongful termination in violation of public policy, intentional infliction of emotional distress, civil assault, civil battery, declaratory relief, and injunctive relief.

Default was entered against Defendants on January 21, 2025.

[TENTATIVE]

RULING

Defendants Drazen Cosic and Cosic Security Services, Inc.'s Motion to Set Aside Default Judgment is GRANTED.

DISCUSSION

Defendants Drazen Cosic and Cosic Security Services, Inc. move this court for an order setting aside the default judgment entered against Defendant. Defendant makes the motion on the grounds that the default judgment was entered as a result of Defendant's mistake, inadvertence, surprise, or excusable neglect.

It is well established that Code of Civil Procedure section 473 is remedial, and its provisions to be liberally construed so as to dispose of cases upon their merits. (See, e.g., Laguna

Village, Inc. v. Laborers' Internat. Union of North America (1983)

35 Cal.3d 174, 182; Taliaferro v. Taliaferro (1963) 217

Cal.App.2d 216, 220.) Code of Civil Procedure section 473(b) consists

of two distinct parts: "a discretionary provision, which applies permissively,

and a mandatory provision, which applies as of right." (Minick v. City

of Petaluma (2016) 3 Cal.App.5th 15, 25-26; Bailey v.

Citibank, N.A. (2021) 66 Cal.App.5th 335, 348.)

Defendants argue they did not timely respond to the complaint

because Defendant Cosic never received proper service of the summons and

complaint. (Cosic Decl. ¶3.) The court grants the motion for relief. Relief

from default pursuant to Code of Civil Procedure section 473 is to

be liberally construed and any doubts in applying Section 473 are to be

resolved in favor of the party seeking relief from default (Elston v.

City of Turlock (1985) 38 Cal.3d 227, 233.) Accordingly, Defendants'

affidavit that he was not served is sufficient under Code of Civil Procedure

section 473(b).

The motion is unopposed. Accordingly, Defendants Drazen Cosic and

Cosic Security Services, Inc.'s Motion to Set Aside Default Judgment is

GRANTED.